



**U.S. Customs and
Border Protection**

September 15, 2025

PUBLIC VERSION

Baker Botts L.L.P.
c/o Iain R. McPhie
On behalf of Ajinomoto Health & Nutrition
North America, Inc.
700 K Street, NW
Washington, DC 20001
Iain.McPhie@bakerbotts.com

Grunfeld Desiderio Lebowitz Silverman
& Klestadt LLP
c/o John A. Schoenig
CPF Legacy, LLC (d/b/a C. Pacific Foods)
599 Lexington Avenue, FL 36
New York, NY 10022-7648
jschoenig@gdlsk.com

Grunfeld Desiderio Lebowitz Silverman
& Klestadt LLP
c/o Erik D. Smithweiss
Jefi Enterprise (USA) Inc.
707 Wilshire Blvd, Ste 4150
Los Angeles, CA 90017-3605
esmithweiss@gdlsk.com

Handylee Enterprises (USA) Corp.
5530 58th Street
Maspeth, NY 11378
handyleeusa@gmail.com

Highland USA International Inc.
41-12A Main Street, Num D09
Flushing, NY, 11355-3133
highland1919@outlook.com

RE: EAPA Cons. Case 7950 – Notice of Determination as to Evasion

To the Counsel and Representatives of the above-referenced entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) Consolidated Investigation 7950 (Cons. 7950), U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that CPF Legacy, LLC, doing business as C. Pacific Foods (CPF); Handylee Enterprises (USA) Corp. (Handylee); Jefi Enterprise (USA) Inc. (Jefi); and Highland USA International Inc. (Highland USA) (collectively, the Importers) evaded antidumping (AD) duty order A-570-992 on monosodium glutamate (MSG) from the People's Republic of China

(China).¹ CBP determined that there is substantial evidence that the Importers evaded the *China MSG Order* by entering into the United States Chinese-origin MSG that was transshipped through Malaysia and/or entering MSG produced in Malaysia from Chinese-origin glutamic acid and improperly declaring the merchandise as Malaysian in origin. As a result, no cash deposits were applied to the merchandise at the time of entry. The basis for CBP's determination is explained below.

Scope of the China MSG Order

The scope of the covered merchandise is as follows:²

The products covered by these orders are MSG, whether or not blended or in solution with other products. Specifically, MSG that has been blended or is in solution with other product(s) is included in these orders when the resulting mix contains 15 percent or more of MSG by dry weight. Products with which MSG may be blended include, but are not limited to, salts, sugars, starches, maltodextrins, and various seasonings. Further, MSG is included in these orders regardless of physical form (including, but not limited to, in monohydrate or anhydrous form, or as substrates, solutions, dry powders of any particle size, or unfinished forms such as MSG slurry), end-use application, or packaging.

MSG in monohydrate form has a molecular formula of C₅ H₈ NO₄ Na·H₂ O, a Chemical Abstract Service (CAS) registry number of 6106-04-3, and a Unique Ingredient Identifier (UNII) number of W81N5U6R6U. MSG in anhydrous form has a molecular formula of C₅ H₈ NO₄ Na, a CAS registry number of 142-47-2, and a UNII number of C3C196L9FG.

I. Background & Procedural History (Pre-Interim Measures)

Allegations, Formal Receipt, and Initiation

On January 31, 2024, and February 22, 2024, Ajinomoto Health & Nutrition North America, Inc. (the *Alleger*)³ filed EAPA allegations against the Importers.⁴ On March 11, 2024, the Trade

¹ See *Monosodium Glutamate from the People's Republic of China, and the Republic of Indonesia: Antidumping Duty Orders and Monosodium Glutamate from the People's Republic of China: Amended Final Determination of Sales at Less Than Fair Value*, 79 Fed. Reg. 70505 (November 26, 2014). See also *Monosodium Glutamate from the People's Republic of China: Second Amended Final Determination of Sales at Less Than Fair Value and Amended Antidumping Order*, 80 FR 487 (January 6, 2015) (*China MSG Order*).

² See the *China MSG Order*.

³ Pursuant to 19 U.S.C. § 1517(a)(6) and 19 C.F.R. § 165.1(2), the *Alleger*, formerly named Ajinomoto North America, Inc., is a manufacturer of a domestic like product, is the sole U.S. producer of MSG, and was the petitioner in the antidumping proceedings that led to the MSG orders at issue in this allegation; therefore, the *Alleger* qualifies as an interested party.

⁴ See the *Alleger's* Letters, "Enforce and Protect Act (EAPA) Allegation: Highland USA (7953/7967)" (Highland USA Allegation), "Enforce and Protect Act Allegation: C. Pacific Foods (7950/7965)," "Enforce and Protect Act Allegation: Handylee Enterprises (USA) Corp. (7951/7966)", and "Enforce and Protect Act Allegation: Jefe Enterprise (USA) Inc. (7952/7964)," dated January 31, 2024, and February 22, 2024 (collectively, the Allegations) at 2-3.

Remedy Law Enforcement Directorate (TRLED), within CBP's Office of Trade, acknowledged receipt of the properly filed Allegations.⁵

To support its Allegations, the Alleger provided trade data from Global Trade Atlas that showed all Malaysian imports of MSG from January 2022 to October 2023.⁶ The trade data indicated that China and Indonesia were the largest exporters of MSG to Malaysia, accounting for approximately 59.9 percent of all imports of MSG into Malaysia by volume for the year 2022 and 65.5 percent for January to October 2023.⁷ The Alleger argued that this trade data supports that Malaysia imports significant quantities of MSG from two countries—China and Indonesia—with active AD orders, and thus, would have the ability to transship these imports to the United States.⁸ The Alleger also stated in its Allegations that the trade data indicated the Importers imported MSG from Ajinoriki Msg (Malaysia) SDN BHD (Malaysia Ajinoriki).⁹

The Alleger asserted that its affiliate, Ajinomoto (Malaysia) Berhard (Ajinomoto Malaysia), stopped producing MSG in Malaysia in 2003 and confirmed that there was no other known company or facility producing MSG in Malaysia.¹⁰ To support that Malaysia Ajinoriki's production capabilities lack the extensive and large-scale equipment needed to manufacture MSG, the Alleger provided an affidavit from the Alleger's Senior Vice President, Ryan Smith, and a letter from Ajinomoto Malaysia's head of the department of consumer marketing, stating that the facility shown in photographs on Malaysia Ajinoriki's website does not have the extensive and large-scale equipment needed for the corn-milling or fermentation stages of MSG production as depicted in the manufacturing process diagram on Malaysia Ajinoriki's website.¹¹ Additionally, Mr. Smith's declaration also included an excerpt of a publication from the U.S. International Trade Commission, which found that the MSG industries in China and Indonesia are the two largest in the world.¹²

Based on this information that Malaysia Ajinoriki is not capable of manufacturing MSG in Malaysia, Mr. Smith stated that Ajinomoto Malaysia engaged a private investigation firm to conduct a corporate intelligence investigation into Malaysia Ajinoriki. The following information was gathered by the investigators, as stated in the declaration:

- Malaysia Ajinoriki repackages Chinese-origin and/or Indonesian-origin MSG at its Malaysian facility before exportation to the United States.¹³

⁵ See CBP's Email, "EAPA 7950, 7951, 7952, 7953, 7964, 7965, 7966 and 7967 – Official Receipt of Properly Filed Allegations," dated March 11, 2024.

⁶ October 2023 represented the most recent month of data available on Global Trade Atlas at the time of filing. See the Allegations at Attachment titled "Global Trade Atlas Malaysia Import Data."

⁷ *Id.*

⁸ *Id.* at 6 and at Attachment titled "Global Trade Atlas Malaysia Import Data."

⁹ See the Allegations at 4 and at Attachment A for "USITC Dataweb, U.S. Imports for Consumption, Monthly Data" and at Attachment B for "Descartes Datamyne, USA Bills Import."

¹⁰ See the Allegations at 4-6 and Attachment titled "Declaration of Mr. Ryan Smith."

¹¹ *Id.*

¹² See the Allegations at Attachment titled "Declaration of Mr. Ryan Smith," at Exhibit 2.

¹³ See the Allegations at 4-6 and Attachment titled "Declaration of Mr. Ryan Smith."

- Malaysia Ajinoriki imports MSG (in bulk) from China and other countries and repackages it into new, pre-made MSG packages of varying sizes and weights before exporting the MSG to the United States.¹⁴
- Malaysia Ajinoriki's key vendors include Fufeng Group, Meihua Group, and Tianjin Tiacheng Group, each of which are major Chinese producers of MSG, as well as PT Cheil Jedang and PT Daesang Ingredients Indonesia, both of which are major Indonesian producers of MSG.¹⁵
- Photographs that Mr. Smith states were taken at Malaysia Ajinoriki's facility show pre-made MSG products for repackaging from Chinese MSG suppliers, including Fufeng and Inner Mongolia Eppen Biotech Co., Ltd.¹⁶
- An informant told investigators that only foreign workers are employed in the repackaging area of the Malaysia Ajinoriki facility, supervised by one dedicated local employee, and that other people are not allowed to enter the repackaging room.¹⁷
- An informant told investigators that Malaysia Ajinoriki conceals all goods in its repackaging area during audits by Malaysian Customs and inspectors from the International Organization for Standardization.¹⁸

The Alleger contended that trade data indicated at least one of the importers, Highland USA, also imported MSG from Habita Food Industries SDN BHD (Habita Food).¹⁹ The Alleger asserted that Habita Food, founded in 2015, is a registered private limited company located in Malaysia that operates as a wholesaler of groceries and related products and is not listed as a manufacturing company.²⁰ According to the Alleger, neither Highland USA nor Habita Food have official websites.²¹ The Alleger also stated that importer Highland USA and supplier Habita Food are the same parties under investigation in another EAPA case (Investigation 7813) for evading the AD duty order on xanthan gum from China by transshipping Chinese-origin xanthan gum through Malaysia.²²

In assessing the facts provided in the Allegations, TRLED found that the Allegations reasonably suggested that the Importers engaged in evasion of the *China MSG Order* or the Indonesia order²³ by transshipping Chinese-origin and/or Indonesia-origin MSG through Malaysia and then falsifying the country of origin as Malaysia when the merchandise was entered into the United

¹⁴ *Id.*

¹⁵ *Id.*

¹⁶ *Id.*

¹⁷ *Id.*

¹⁸ *Id.*

¹⁹ See Highland USA Allegation at 2-6 and Attachments A and B.

²⁰ See Highland USA Allegation at 5 and Attachment E containing a company profile on Habita Food from "Creditsafe," which provides company credit scores and credit report information.

²¹ *Id.*

²² See Highland USA Allegation at 2, citing "Notice of Initiation of Investigation and Interim Measures - EAPA Consolidated Case Number 7813," dated September 27, 2023. Note: On April 24, 2024, TRLED found substantial evidence that Highland USA evaded the antidumping duty order on xanthan gum by transshipping Chinese-origin xanthan gum through Malaysia and falsely declaring the entries as Malaysian-origin in EAPA Cons. Case 7813.

²³ Note the Indonesia order was combined with the *China MSG Order* by the Department of Commerce. See *Monosodium Glutamate from the People's Republic of China, and the Republic of Indonesia: Antidumping Duty Orders and Monosodium Glutamate from the People's Republic of China: Amended Final Determination of Sales at Less Than Fair Value*, 79 Fed. Reg. 70505 (November 26, 2014).

States.²⁴ As a result, CBP initiated an investigation pursuant to Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as EAPA on April 1, 2024.²⁵

Post-Initiation

On April 24, 2024, CBP issued a CF-28 to each of the Importers²⁶ for one of their entries made during the period of investigation (POI),²⁷ requesting supporting entry, sales, and production documents for entry numbers [#s] 1174 (entry 1174), [#s] 2846 (entry 2846), [#s] 3102 (entry 3102), and [#s] 3267 (entry 3267).²⁸

CF-28 Response for Entry 3267 - Jefi

On May 15, 2024, CBP timely received a CF-28 response from Jefi for entry 3267, with an entry date of August 28, 2023.²⁹ The documents submitted by Jefi included a June 20, 2023, commercial invoice from Malaysia Ajinoriki for [#s] kg of MSG, totaling \$[#s]; a June 20, 2023 packing list from Malaysia Ajinoriki for [#s] kg; and a June 26, 2023 Bill of Lading (BOL) for [#s] bags of MSG.³⁰ Jefi also provided additional certifications of origin and product analysis, payment information, purchase order information, and documents, including a Malaysia Ajinoriki manufacturing process flow chart and a manufacturing license, indicating Malaysia Ajinoriki is a manufacturer of MSG.³¹ Jefi did not provide any raw material purchase or transportation information and did not provide any proof of production, such as production documents, photos or explanations of manufacturing equipment, or proof of labor. Jefi provided a document that purported to be a current manufacturing license for Malaysia Ajinoriki; however, it displayed a different physical address from that shown on all other Malaysia Ajinoriki-branded documents in the CF-28 response.³²

CF-28 Response for Entry 2846 - CPF

On May 15, 2024, CBP timely received a CF-28 response from CPF for entry 2846, with an entry date of March 25, 2024.³³ The documents submitted by CPF included a commercial invoice from Malaysia Ajinoriki for [#s] kg of MSG for a total of \$[#s]; a February 23,

²⁴ See Initiation Memo.

²⁵ See CBP Memorandum, “Initiation of Investigation for EAPA 7950, 7951, 7952, 7953, 7964, 7965, 7966 and 7967 (Consolidated Case 7950 (Cons. 7950)),” dated April 1, 2024 (Initiation Memo).

²⁶ See CF-28 Requests for Information on entries 1174, 2846, 3102 and 3267, dated April 24, 2024 (CF-28 requests).

²⁷ The entries covered by this POI are those entered for consumption, or withdrawn from warehouse for consumption, from March 11, 2023, through the pendency of this investigation.

²⁸ See 19 C.F.R. § 163.6(a) requiring importers to produce the supporting documentation to CBP on request. Specifically, the CF-28s requested the following entry information, production records and process, raw materials information, a demonstration of how the manufacturer tied the raw material to the finished product, information on equipment used to produce MSG, a list of employees, business registration information.

²⁹ See Jefi’s CF-28 response for entry 3267, dated May 15, 2024 (entry 3267 CF-28 response).

³⁰ *Id.* See also CBP’s Memorandum, “Notice of Initiation of Investigation and Interim Measures - EAPA Consolidated Case 7950,” dated July 9, 2024 (the NOI), for more details on documents submitted.

³¹ *Id.*

³² *Id.*

³³ See CPF’s CF-28 response for entry 2846, dated May 15, 2024 (entry 2846 CF-28 response).

2024, packing list from Malaysia Ajinoriki indicating [#s] bags of MSG, with a weight of [#s] kg; a BOL for the freight charges only; and an arrival notice.³⁴ CPF also provided purchase order information and payment information.³⁵ CPF did not provide any raw material purchase or transportation information and did not provide any proof of production, such as production documents, photos or explanations of manufacturing equipment, or proof of labor.

CF-28 Response for Entry 3102 - Highland USA

On May 24, 2024, CBP timely received a CF-28 response from Highland USA for entry 3102, with an entry date of June 1, 2023.³⁶ The documents submitted by Highland USA included a March 29, 2023, commercial invoice and packing list from Habita Food; a shipping receipt; a certificate of origin issued by the Malaysian Chamber of Commerce; and a CBP entry form and CBP entry summary form for the entry.³⁷ These documents indicated that Habita Food shipped [#s] kg of MSG, consisting of [#s] bags with the total value of \$[#s], to Highland USA.³⁸ Highland USA did not provide any raw material purchase or transportation information and did not provide any proof of production, such as production documents, photos or explanations of manufacturing equipment, or proof of labor.

CF-28 Response for Entry 1174 - Handylee

On May 29, 2024, CBP timely received a CF-28 response from Handylee for entry 1174, with an entry date of May 22, 2023.³⁹ The documents submitted included a commercial invoice from Malaysia Ajinoriki for MSG in the amount of [#s] bags, totaling \$[#s] and other selected entry and shipping documents.⁴⁰ Handylee did not provide any raw material purchase or transportation information and did not provide any proof of production, such as production documents, photos or explanations of manufacturing equipment, or proof of labor. Furthermore, Handylee's invoice from Malaysia Ajinoriki is markedly different from the invoices supplied by CPF and Jefi for Malaysia Ajinoriki in that the commercial invoice provided is not on Malaysia Ajinoriki company letterhead.⁴¹

Other Research

CBP researched foreign trade data and confirmed that Malaysia Ajinoriki and Habita Food imported MSG shipments into Malaysia [Locations] from 2020 through 2022.⁴² Specifically, the foreign shipment data indicated that on May 31, 2022, Habita Food imported as many as [#] containers of MSG [Location] into Malaysia totaling [#s] bags on a vessel

³⁴ *Id.* See also the NOI for more details on documents submitted.

³⁵ *Id.*

³⁶ See Highland USA's CF-28 response for entry 3102, dated May 24, 2024 (entry 3102 CF-28 response).

³⁷ *Id.* See also the NOI for more details on documents submitted.

³⁸ *Id.*

³⁹ See Handylee's CF-28 response for entry 1174, dated May 29, 2024 (entry 1174 CF-28 response).

⁴⁰ *Id.* See also the NOI for more details on documents submitted.

⁴¹ *Id.*

⁴² See CBP's Memo to the File, "Supplemental Information to the Administrative Record of EAPA Consolidated Case 7950," dated June 24, 2024 (CBP's June 24th Memo).

named [Name and Code].⁴³ Likewise, Malaysia Ajinoriki imported a total of [#s] bags of MSG, which amounts to about [#s] containers, from [Location] into Malaysia during 2021 and 2022.⁴⁴ Also, Malaysia Ajinoriki imported into Malaysia as many as [#s] shipments amounting to [#s] kg of MSG from [Names] during 2020 and 2021.⁴⁵ This shows that Malaysia Ajinoriki had a pattern of importing MSG from order countries into Malaysia.

CBP also conducted open-source research and discovered that Malaysia Ajinoriki has longstanding connections to a Chinese MSG manufacturer, Lotus Health Industry Group Company (Lotus Health), as shown in a few published articles about Lotus Health investing in Malaysia Ajinoriki.⁴⁶ Lotus Health entered into a letter of intent to purchase at least a 50 percent stake in Malaysia Ajinoriki from the current shareholders Loo Siew Kim (also known as “Lu Xiu Jin”) and Kee Seok Chean (also known as “Ji Suk Ching”) in December 2023.⁴⁷ According to *Yicai Global Report*, Lotus Health is a Chinese MSG manufacturer.⁴⁸ According to another published article, Malaysia Ajinoriki is an MSG dealer for Lotus Health in the Malaysian market.⁴⁹ An article published by *Zhitong Finance App News* further confirmed that even before the purchase proposal, Malaysia Ajinoriki previously had been a distributor of MSG for Lotus Health in the Malaysian market.⁵⁰ Thus, Malaysia Ajinoriki is a distributor of Chinese MSG. Malaysia Ajinoriki also has a Chinese office located at 614 Tower B, Gelamu Building, 18 Zhengdong New Business Outer Ring Road, Jinshui District, Zhengzhou City, Henan Province, China, demonstrating close business ties with China.⁵¹

Overall, CBP found that the Importers’ CF-28 responses were vastly incomplete for the entries of MSG from Malaysia Ajinoriki and Habita Food.⁵² Primarily, they did not contain any information regarding if, or how, Malaysia Ajinoriki or Habita Food produced the MSG in question in Malaysia.

II. Interim Measures & Post Interim Measures

Interim Measures

Not later than ninety (90) calendar days after initiating an investigation under EAPA, TRLED will decide, based on the record of the investigation, if there is reasonable suspicion that merchandise covered by an AD or countervailing duty (CVD) order was entered into the United States through evasion. CBP need only have sufficient evidence to support a reasonable suspicion that the importer alleged to be evading entered merchandise covered by an AD or CVD

⁴³ *Id.* at attachment 1.

⁴⁴ *Id.*

⁴⁵ *Id.*

⁴⁶ *Id.* at attachment 2.

⁴⁷ *Id.*

⁴⁸ *Id.*

⁴⁹ *Id.*

⁵⁰ *Id.*

⁵¹ *Id.*

⁵² See entry 3102 CF-28 response, entry 3267 CF-28 response, entry 2846 CF-28 response, and entry 1174 CF-28 response.

order into the United States by a materially false statement or act, or material omission that resulted in the reduction or avoidance of applicable AD or CVD cash deposits or other security. If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24.

After evaluating the information on the record, on July 9, 2024, CBP issued its Notice of Initiation and Interim Measures.⁵³ TRLED determined that there was reasonable suspicion that the Importers evaded the *China MSG Order* by transshipping MSG from China through Malaysia and declaring it as Malaysian-origin upon entry.⁵⁴ TRLED's findings were based on the record evidence at the time, including the information provided in the Allegations,⁵⁵ the research that showed Malaysia Ajinoriki's connections to a Chinese supplier of MSG and its imports of Chinese and Indonesia MSG,⁵⁶ and the inconsistencies between the CF-28 responses and the fact the CF-28s responses for entries 1174, 2846, 3102, and 1139 did not include information that indicated that the MSG was produced in Malaysia during the POI.⁵⁷

Requests for Information (RFI)

On July 17, 2024, CBP issued Requests for Information (RFI) to the Importers.⁵⁸ On July 18, 2024, an RFI was issued to Malaysia Ajinoriki.⁵⁹ CBP sent out an RFI to Habita Food after the other RFIs due to issues in finding a proper address for Habita Food.⁶⁰ On May 30, 2025, CBP issued an RFI *via* FedEx to four different addresses in Malaysia for Habita Food.⁶¹ Habita Food did not respond to CBP's first RFI request even though one FedEx package was successfully delivered to Habita Food at [Address] Malaysia on June 3, 2025. As a result, CBP made another attempt to issue an RFI to Habita Food *via* FedEx to [Address].⁶² FedEx tracking indicated that the RFI was delivered on June 19, 2025, at 2:07 PM, and signed for by an individual named [Name].⁶³ However, CBP received no response to the RFI.

⁵³ See the NOI.

⁵⁴ *Id.*

⁵⁵ See the Allegations. See also the NOI.

⁵⁶ See CBP's June 24th Memo. See also the NOI.

⁵⁷ See entry 3102 CF-28 response, entry 3267 CF-28 response, entry 2846 CF-28 response, and entry 1174 CF-28 response. See also the NOI for specific details on the CF-28 responses and further analysis regarding CBP's determination of reasonable suspicion of evasion.

⁵⁸ See CBP's Emails, "EAPA Cons. 7950: CBP Request for Information - CPF Food," "EAPA Cons. 7950: CBP Request for Information - JEFI," "EAPA Cons. 7950: CBP Request for Information - Handylee," and "EAPA Cons. 7950: CBP Request for Information - Highland," all dated July 17, 2024.

⁵⁹ See CBP's Email, "EAPA Cons. 7950: CBP Request for Information - Malaysia Ajinoriki," dated July 18, 2024.

⁶⁰ CBP notes that it also does not have a proper email address for Habita Food.

⁶¹ See CBP's Letter, "EAPA Cons. 7950 - Request for Information from Habita Food Industries Sdn Bhd," dated May 30, 2025 (1st Habita Food RFI Request). See also, CBP's Memo to the File, "2nd Supplemental Information to the Administrative Record of EAPA Consolidated Case 7950," dated July 2, 2025 (CBP's July 2nd Supp. Memo).

⁶² See CBP's Letter, "EAPA Cons. 7950 - Request for Information from Habita Food Industries Sdn Bhd," dated June 16, 2025 (2nd Habita Food RFI Request). See also CBP's July 2nd Supp. Memo.

⁶³ See CBP's July 2nd Supp. Memo.

The RFIs asked for an explanation of corporate structure, accounting and financial practices, and sales information and, from the suppliers, detailed production information, including raw material purchases, inventories, a list and description of all significant inputs used to produce MSG, and monthly inventory movement schedules for the most significant direct raw material inputs.⁶⁴ The RFIs asked for responses to questions so CBP could identify the actual manufacturer and/or supplier of the goods, as well as validate the supplier's MSG production capacity for sale to the United States during the POI.

CPF's RFI Response

CPF's timely RFI response indicated that Malaysia Ajinoriki contacted CPF to offer to "pack" MSG for the [Name], but the RFI made no mention of Malaysia Ajinoriki offering to manufacture MSG.⁶⁵ Also, the RFI response indicated that CPF never visited or inspected Malaysia Ajinoriki's factory; instead, CPF relied on food safety, third party audits, kosher and/or halal certifications from what CPF characterized as trustworthy organizations for evidence of quality and/or origin.⁶⁶ CPF stated that the company has not found any quality issues warranting a factory visit.⁶⁷

Jefi's RFI Response

Jefi's timely RFI response indicated that Jefi officials did not visit and/or inspect Malaysia Ajinoriki's factory to verify manufacturing capabilities.⁶⁸ Similar to CPF, Jefi said it relied on trusted third party websites, certifications, audits, and general Internet research, combined with the fact that [Name] performed [Adjective] food quality tests, to conclude that [Name] was a reliable supplier.⁶⁹ Jefi also stated in its RFI response that it selected [Name] as an MSG supplier based on [Name]'s advertisements and because Jefi was looking for a Malaysian supplier of MSG and noticed that [Name]'s MSG was labeled a "Product of Malaysia" in Malaysian supermarkets.⁷⁰

Therefore, CFP's and Jefi's RFI responses indicate that the claimed MSG manufacturing in Malaysia is based on Malaysia Ajinoriki's and various other third-party proclamations, and was not authenticated directly by either importer.

⁶⁴ See RFI questionnaires for all four Importers and the two Malaysian suppliers.

⁶⁵ See CPF's Letter, "EAPA Cons. Case 7950, CPF Legacy, LLC (d/b/a C. Pacific Foods), Response to Request for Information dated July 17, 2024, Our Reference: 61597-0060001," dated August 26, 2024 (CPF's RFI Response) at 3.

⁶⁶ *Id.* at 21-22.

⁶⁷ *Id.* at 22.

⁶⁸ See Jefi's Letter, "EAPA Cons. Case 7950, Jefi Enterprise (USA) Inc., Response to Request for Information dated July 17, 2024, Our Reference: 61398-0060001," dated August 26, 2024.

⁶⁹ *Id.* at 14.

⁷⁰ *Id.* at 11-12.

Malaysia Ajinoriki's RFI Response

CBP received a timely RFI response from Malaysia Ajinoriki.⁷¹ According to the response, glutamic acid and sodium carbonate (soda ash) are the primary materials that are used to produce MSG, along with auxiliary materials such as activated carbon, hydrogen chloride, and sodium hydroxide.⁷² In its timely supplemental RFI response, Malaysia Ajinoriki reported purchasing Chinese-origin glutamic acid from a trading company named [Name].⁷³ Malaysia Ajinoriki indicated that the ultimate producer of the glutamic acid was Chinese manufacturer [Name].⁷⁴ Malaysia Ajinoriki submitted copies of the certificates of analysis for their purchases of glutamic acid as provided by [Name].⁷⁵ Malaysia Ajinoriki reported that the Chinese-origin glutamic acid purchased from [Name] (through [Name]) was the main ingredient in its exports of MSG to the United States.⁷⁶

Non-Responsive Parties: U.S. Importer Handylee, U.S. Importer Highland USA, and Malaysian Supplier Habita Food

CBP did not receive any RFI responses from Handylee,⁷⁷ Highland USA,⁷⁸ or Habita Food,⁷⁹ despite the lengthy amount of time available to them to respond to the RFI questionnaires. CBP sent Handylee and Highland USA their RFIs to their known email addresses.

Voluntary Factual Information

CBP received timely voluntary factual information from CPF and Jefe on October 18, 2024.⁸⁰

CBP's Commerce Covered Merchandise Referral

On December 18, 2024, CBP submitted a covered merchandise referral to the U.S. Department of Commerce (Commerce), in accordance with 19 C.F.R. § 165.16.⁸¹ In the referral, CBP stated that it was unable to determine whether the MSG allegedly produced by Malaysia Ajinoriki from

⁷¹ See Malaysia Ajinoriki's Letter, "EAPA Consolidated Investigation 7950 – Response to Request for Information," dated August 29, 2025 (Malaysia Ajinoriki's RFI Response).

⁷² *Id.* at 39.

⁷³ See Malaysia Ajinoriki's Letter, "EAPA Consolidated Investigation 7950 – Response to Supplemental Request for Information," dated October 9, 2024 (Malaysia Ajinoriki's SRFI Response) at S-12.

⁷⁴ *Id.* See also Malaysia Ajinoriki's RFI Response at Exhibit 33.

⁷⁵ See Malaysia Ajinoriki's RFI Response at Exhibit 33.

⁷⁶ See Malaysia Ajinoriki's SRFI Response at S-12. See also Malaysia Ajinoriki's RFI Response at 39.

⁷⁷ See CBP's Email, "EAPA Cons. 7950: CBP Request for Information – Handylee," dated July 17, 2025.

⁷⁸ See CBP's Email, "EAPA Cons. 7950: CBP Request for Information – Highland," dated July 17, 2025.

⁷⁹ See 1st Habita Food RFI Request and 2nd Habita Food RFI Request. See also CBP's July 2nd Supp. Memo.

⁸⁰ See CPF's Letter, "EAPA Cons. Case 7950 CPF Legacy, LLC (d/b/a C. Pacific Foods) Submission of Factual Information Reference: 61597-0060001," dated October 18, 2024. See also Jefe's Letter, "EAPA Cons. Case 7950 JEFE Enterprise (USA) Inc. Submission of Factual Information Reference: 61597-0060001," dated October 18, 2024.

⁸¹ See CBP's Letter, "Scope Determination Referral Request for EAPA Consolidated Investigation 7950 on Antidumping Duty Order A-570-992 on Monosodium Glutamate from the People's Republic of China," dated December 18, 2024.

certain Chinese inputs, and/or certain third country inputs, was covered merchandise in accordance with the *China MSG Order*.⁸² Therefore, CBP requested that Commerce determine whether the MSG produced in Malaysia by Malaysia Ajinomoto by processing Chinese-origin glutamic acid into MSG is covered by the *China MSG Order*.⁸³

Commerce Final Affirmative Covered Merchandise Determination

On May 29, 2025, Commerce informed CBP that it had a response to CBP's covered merchandise referral from December 18, 2024.⁸⁴ Commerce stated:

The U.S. Department of Commerce ("Commerce") finds that imports of monosodium glutamate (MSG) processed in Malaysia that incorporate glutamic acid produced in the People's Republic of China (China) (inquiry merchandise) are circumventing the antidumping duty (AD) order on MSG from China.⁸⁵ Commerce is applying its affirmative determination of circumvention on a country-wide basis...⁸⁶

Thus, Commerce issued a final affirmative determination that MSG finished in Malaysia using glutamic acid produced in China is within the scope of the *China MSG Order*.

Extension of the Determination as to Evasion Deadline

On May 30, 2025, CBP notified parties to the investigation that the determination as to evasion would be extended, in accordance with 19 C.F.R. § 165.22(c), by sixty (60) calendar days from the original deadline of July 9, 2025, to allow CBP time to fully analyze the administrative record, including the Commerce's covered merchandise determination.⁸⁷ In addition, CBP stated that it needed time to solicit additional information from certain parties to the investigation, and to provide adequate time for parties to submit written arguments and responses to written arguments.⁸⁸ Since the newly established deadline fell on Sunday, September 7, 2025, accordingly, the deadline moved to Monday, September 8, 2025, and CBP stated it would issue the notice of determination as to evasion no later than five (5) business days after the extended deadline.⁸⁹

⁸² *Id.*

⁸³ *Id.*

⁸⁴ See Commerce's Letter, "Covered Merchandise Referral Regarding EAPA Investigation No. 7950," dated May 29, 2025, at Attachment containing "Issues and Decision Memorandum for the Circumvention Inquiry of the Antidumping Duty Order on Monosodium Glutamate from the People's Republic of China," dated May 22, 2025 (Covered Merchandise Referral Response).

⁸⁵ Commerce cited to the *China MSG Order*.

⁸⁶ See Covered Merchandise Referral Response.

⁸⁷ See CBP's Letter, "Notice of Extension of Determination as to Evasion," dated May 30, 2025.

⁸⁸ *Id.*

⁸⁹ *Id.*

Written Arguments

On October 22, 2024, CBP notified parties to the investigation that the deadline for written arguments was extended until further notice.⁹⁰ On June 25, 2025, CBP notified parties that the new deadline for written arguments was July 10, 2025, and the deadline for responses to such written arguments would be fifteen (15) calendar days thereafter.⁹¹ On July 7, 2025, CBP received requests from CPF and JEFI for additional time to submit their written arguments.⁹² Accordingly, on July 8, 2025, CBP granted a seven-day extension for all parties to the investigation to submit written arguments, with the new deadline July 17, 2025.⁹³ The Alleger, CPF, and JEFI timely submitted written arguments on July 17, 2025.⁹⁴

The Alleger's written arguments advise CBP to use its authority to apply adverse inferences against Highland USA and Handylee due to their lack of cooperation by failing to respond to CBP's RFIs.⁹⁵ The Alleger argues there is no relevant information regarding Highland USA's, nor Handylee's, corporate structures, accounting/financial practices, and sales on the record.⁹⁶ The Alleger adds that the CF-28 responses from these companies contained no information relating to raw material purchases or transportation and did not provide any proof of production, and there are doubts about which documents are authentic and which may be fraudulent.⁹⁷ Finally, the Alleger maintains that substantial information in the record supports the conclusion that all Highland USA's and Handylee's entries of MSG from Malaysia were covered merchandise that was purposefully declared to be of Malaysian origin to evade the *China MSG Order*.⁹⁸

CPF's written arguments maintain that evidence on the record demonstrates that Malaysia Ajinoriki produced the subject MSG at its facility in Malaysia using glutamic acid imported from China, and that CPF imported the MSG it produced in Malaysia directly to the United States.⁹⁹ Accordingly, CPF asserts there is no evidence of transshipment and CBP must reach a negative determination of evasion.¹⁰⁰

⁹⁰ See CBP's Email, "EAPA Cons 7950: CBP Extension of Written Arguments Deadline," dated October 22, 2024.

⁹¹ See CBP's Email, "EAPA Cons. 7950: Written Arguments Deadline," dated June 25, 2025.

⁹² See CPF's and JEFI's Letters, "Investigation - EAPA Case 7950, JEFI Enterprise (USA) Inc. Request for Extension of Written Argument, Our Reference: 61598-0060001" and "Investigation - EAPA Case 7950, CPF Legacy, LLC dba C. Pacific, Request for Extension of Written Argument, Our Reference: 61597-0060001," dated July 7, 2025.

⁹³ See CBP's Memorandum, "EAPA Consolidated Case No. 7950 – Response to CPF Legacy LLC's and JEFI Enterprise (USA) Inc's July 7, 2025, Request for Extension to Submit Written Arguments," dated July 8, 2025.

⁹⁴ See the Alleger's Letter, "EAPA Case Number 7950: AHN's Written Arguments," (the Alleger's Written Arguments), dated July 17, 2025; CPF's Letter, "EAPA Cons. Case 7950, CPF Legacy, LLC (d/b/a C. Pacific Foods), Written Argument, Our Reference: 61598-0060001" (CPF's Written Arguments), dated July 17, 2025; and JEFI's Letter, "EAPA Cons. Case 7950, JEFI Enterprise (USA) Inc., Written Argument, Our Reference: 61598-0060001" (JEFI's Written Arguments), dated July 17, 2025.

⁹⁵ See the Alleger's Written Arguments at 2.

⁹⁶ *Id.*

⁹⁷ *Id.*, citing the NOI.

⁹⁸ See the Alleger's Written Arguments at 2.

⁹⁹ See CPF's Written Arguments at 3.

¹⁰⁰ *Id.*

CPF argued the fact that because Commerce found circumvention in a separate proceeding that should not affect the outcome of the EAPA investigation because the EAPA investigation concerns the allegation of transshipment, and the evidence on the record refutes such an allegation.¹⁰¹ CPF states that declaring the MSG at issue as a product of Malaysia was not a materially false statement because the MSG was actually produced in Malaysia.¹⁰² Thus, CPF argues that Commerce's recent determination that MSG produced in Malaysia from Chinese glutamic acid is circumventing the *China MSG Order* under the criteria of 19 U.S.C. § 1677j(b) does not change the fact the MSG was actually produced in Malaysia.¹⁰³ This is because when the Importers filed the subject customs entries, MSG produced by Ajinomoto in Malaysia using Chinese glutamic acid had not been determined to be subject to the *China MSG Order*.¹⁰⁴

CPF argues that there was no cash deposit requirement for MSG produced in Malaysia using Chinese glutamic acid, as that cash deposit requirement was not issued by Commerce until March 21, 2025.¹⁰⁵ Consequently, CPF argues that the entries during the POI were filed truthfully and did not contain any false statements or material omissions.¹⁰⁶ CPF notes by statute, a finding of "evasion" requires a false statement or omission regarding the entries when they were filed.¹⁰⁷ CPF argues that the Importers' entries, during the relevant POI, contained no false statements, and thus, regardless of the subsequent Commerce decision on circumvention, there cannot be a determination of evasion in this EAPA investigation.¹⁰⁸ Substantial evidence on the record, according to CPF, shows that Malaysia Ajinomoto produced the MSG in Malaysia using glutamic acid from China.¹⁰⁹ While the glutamic acid was admittedly Chinese origin, CPF argues it is clearly not MSG, and the *China MSG Order* only covered MSG produced in China at the time the subject entries were filed.¹¹⁰

Jefi's written arguments described the same arguments listed in CPF's written arguments.¹¹¹ According to Jefi, no evidence exists on the record to support the finding of transshipment because CPF and Jefi clearly imported MSG produced in Malaysia using glutamic acid from China that was manufactured at the Malaysia Ajinomoto facilities.¹¹²

Responses to Written Arguments

On August 1, 2025, both CPF and Jefi submitted responses¹¹³ to the Alleger's written arguments, reiterating that:

¹⁰¹ *Id.* at 3-4.

¹⁰² *Id.* at 5-6.

¹⁰³ *Id.*

¹⁰⁴ *Id.*

¹⁰⁵ *Id.* at 6.

¹⁰⁶ *Id.*

¹⁰⁷ *Id.*

¹⁰⁸ *Id.*

¹⁰⁹ *Id.*

¹¹⁰ *Id.* at 6.

¹¹¹ See Jefi's Written Arguments.

¹¹² *Id.*

¹¹³ See CPF's and Jefi's Letters, "EAPA Cons. Case 7950, CPF Legacy, LLC (d/b/a C. Pacific Foods), Response to Alleger's Written Argument, Our Reference: 61598-0060001," dated August 1, 2025 (CPF's Rebuttal), and "EAPA

...substantial evidence on the record of this investigation shows that the MSG was produced by Ajinoriki in Malaysia from glutamic acid from China. The MSG was not “covered merchandise” at the time of importation. More importantly, there was no evidence in the record that the MSG was falsely declared as Malaysian origin. To the contrary, CBP confirmed that the MSG was actually produced in Malaysia. Neither CBP nor DOC {Department of Commerce} have made any contrary conclusion regarding origin. The DOC’s determination of circumvention based on 3rd country processing of glutamic acid was not a decision regarding country of origin. C. Pacific/Jefi did not falsely declare covered merchandise to be of Malaysian origin.¹¹⁴

On August 1, 2025, the Alleger submitted a response¹¹⁵ to CPF’s and Jefi’s written arguments, re-affirming that MSG supplied by Malaysia Ajinoriki is covered merchandise because CBP’s covered merchandise referral to Commerce asked for Commerce’s determination as to whether the MSG shipped by Ajinoriki was “covered merchandise” subject to the *China MSG Order* for purposes of this EAPA case.¹¹⁶ The Alleger argues that Commerce addressed CBP’s question in an affirmative circumvention determination that applied duty deposit requirements to all entries of such MSG imports from Malaysia Ajinoriki, including those entered prior to the initiation of its circumvention inquiry.¹¹⁷ The Alleger concludes in its response that this means the Importers’ entries of Malaysia Ajinoriki MSG that were originally declared not subject to the *China MSG Order* evaded duties, regardless of when the entries were made.¹¹⁸ The Alleger also argues that the Commerce circumvention inquiry determination means the Malaysia Ajinoriki MSG imported was covered merchandise that was subject to the *China MSG Order*, and the Importers’ entries of such MSG as type 01 entries not subject to AD duties, therefore, were false.¹¹⁹

III. Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion, CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion.” The term “evasion” is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or

Cons. Case 7950, JEFI Enterprise (USA) Inc., Response to Alleger’s Written Argument, Our Reference: 61598-0060001,” dated August 1, 2025 (Jefi’s Rebuttal).

¹¹⁴ See CPF’s Rebuttal and Jefi’s Rebuttal at 1.

¹¹⁵ See the Alleger’s Letter, “EAPA Case Number 7950: AHN’s Response to Written Arguments”, dated August 1, 2025.

¹¹⁶ *Id.* at 1.

¹¹⁷ *Id.*

¹¹⁸ *Id.* at 1-2.

¹¹⁹ *Id.* at 2.

countervailing duties being reduced or not being applied with respect to the covered merchandise.”¹²⁰

Application of Adverse Inferences

In making an evasion determination, 19 U.S.C. § 1517(c)(2) provides CBP the authority to “collect such additional information as is necessary to make the determination through such methods as the Commissioner considers appropriate, including by ... issuing a questionnaire with respect to such covered merchandise to” the Importer alleged to have engaged in evasion and the foreign producer of the covered merchandise. Further, 19 U.S.C. § 1517(c)(3) discusses the use of adverse inferences by CBP, stating that if CBP finds that an alleged, importer, or the foreign producer or exporter of the covered merchandise “has failed to cooperate by not acting to the best of the party or person’s ability to comply with a request for information, the Commissioner may, in making a determination {of evasion}, use an inference that is adverse to the interests of that party or person in selecting from among the facts otherwise available to make the determination.”¹²¹ Both the statute and implementing regulations are clear that CBP may apply an adverse inference to, as is relevant here, an importer or manufacturer that does not, to the best of its ability, respond to CBP’s RFIs.

As described above, CBP provided Handylee, Highland USA, and Habita Food with the opportunity to reply to CBP’s RFIs; however, Handylee, Highland USA and Habita Food failed to provide any responses to CBP’s RFIs.

As a result of Highland USA’s and Habita Food’s failures to respond in this investigation, and thus fully cooperate to the best of their abilities, CBP’s ability to obtain information for its investigation was impeded significantly and CBP was unable to perform the necessary analysis to determine whether their imports/exports of MSG entered the United States through evasion. In addition, the record does not contain any information to corroborate Highland USA’s claims regarding country of origin.

Since Highland USA and Habita Food failed to cooperate to the best of their abilities by failing to respond to the RFIs, in accordance with 19 U.S.C. § 1517(c)(3)(A) and 19 C.F.R. § 165.6, CBP is drawing inferences adverse to the interests of the companies from the facts otherwise available on the administrative record. The facts on the record that CBP will rely upon considering these parties’ failures to respond are:

1. The only information on the record which establishes that Habita Food produces or supplies MSG produced in Malaysia is provided through Highland USA’s declarations to CBP on entry and the limited entry documents supplied in its CF-28 response. Highland USA’s CF-28 response for entry 3102 was incomplete because Highland USA failed to provide complete entry documents, payment information, or any proof of production, such as production documents, photos or explanations of manufacturing equipment or

¹²⁰ See 19 C.F.R. § 165.1.

¹²¹ See also 19 C.F.R. § 165.6(a).

proof of labor.¹²² As a result, there are no record documents establishing that the MSG exported to the United States for Highland USA was actually produced in Malaysia.

2. Highland USA and Habita Food have a pattern of importing Chinese goods subject to AD/CVD orders into the United States without paying duties. CBP has investigated Highland USA and Habita Food in past EAPA investigations where CBP found that the two companies failed to cooperate and comply to the best of their abilities with the RFIs CBP sent in those investigations. For example, in EAPA Cons. Case 7813, CBP applied adverse inferences to find that Highland USA and Habita Food evaded the AD order on xanthan gum from China.¹²³
3. The Allegations assert that Habita Food, founded in 2015, is a registered private limited company located in Malaysia that operates as a wholesaler of groceries and related products and is not listed as a manufacturing company.¹²⁴

Therefore, for the reasons discussed above, CBP is drawing adverse inferences and determining that all Highland USA's MSG entries during the POI were produced in China and that Highland USA falsified the country of origin on entry by claiming Malaysia, rather than China, as the country of origin. Consequently, the required cash deposits were not collected on the merchandise. As a result, Highland USA's entries subject to this EAPA investigation will be subject to the China-wide entity rate for the *China MSG Order*.¹²⁵

CBP's position on MSG Imports from Malaysia Ajinoriki

Commerce determined that MSG finished in Malaysia using glutamic acid produced in China and subsequently exported from Malaysia to the United States is covered by the scope of the *China MSG Order*.¹²⁶ Malaysia Ajinoriki stated itself in its RFI response to CBP that it sourced glutamic acid from China during the POI that was used to produce the MSG which was supplied to the Importers and entered into the United States.¹²⁷ There is no dispute on the record regarding how Malaysia Ajinoriki produced MSG. Therefore, there is substantial evidence on the record that supports that Malaysia Ajinoriki supplied Chinese-origin MSG during the POI that should have been subject to the *China MSG Order*. During the POI, Handylee, CPF and Jefi all imported MSG from Malaysia Ajinoriki, and this record evidence is also not in dispute. As a result, Handylee, CPF, and Jefi should have declared their imports of MSG from Malaysia Ajinoriki as type 03 entries, with China as the country of origin, and cash deposits should have been collected on those entries. CBP notes that while, per the above discussion, Handylee also failed to cooperate and comply to the best of its abilities with CBP's investigation, the substantial evidence discussed in this paragraph demonstrates that Handylee's imports of MSG from Malaysia Ajinoriki are covered merchandise under the *China MSG Order*. As a result,

¹²² See entry 3102 CF-28 response.

¹²³ See the NOI.

¹²⁴ See Highland USA Allegation at 5 and Attachment E.

¹²⁵ The rate applicable to these entries are the China-wide entity rate for the *China MSG Order*, unless otherwise specified by Commerce.

¹²⁶ See Covered Merchandise Referral Response.

¹²⁷ See Malaysia Ajinoriki's RFI Response at Exhibit 32.

Handylee's, CPF's, and Jefe's entries subject to this EAPA investigation will be subject to the China-wide entity rate for the *China MSG Order*.¹²⁸

Regarding the Allegations' claim that the MSG from Malaysia Ajinoriki may have originated in Indonesia, which would have made the merchandise to MSG order A-560-826, CBP notes that the evidence on the record shows that Malaysia Ajinoriki primarily purchases glutamic acid from China, which it makes into MSG in Malaysia. CBP does not have sufficient evidence on the record of this investigation showing that Malaysia Ajinoriki purchased MSG from Indonesia which it then exported to these Importers during the POI. Therefore, CBP finds that there is not substantial evidence on the record that demonstrates the Importers entered Indonesian-origin MSG into the United States that was transshipped through Malaysia during the period covered by this EAPA investigation.

CPF and Jefe argue that MSG manufactured in Malaysia from Chinese glutamic acid is not covered merchandise; therefore, CPF and Jefe further argue no cash deposit requirements for MSG produced in Malaysia using Chinese glutamic acid were in place until the circumvention inquiry by Commerce was initiated.¹²⁹ They claim the Importers' entries contained no false statements and that the entries were filed truthfully and did not contain any false statements or material omissions.¹³⁰

CBP notes that by statute, a finding of "evasion" merely requires a material false statement or omission regarding the entries when they were filed.¹³¹ CBP finds that the Importers had an obligation when importing merchandise into the United States to undertake due diligence as to whether the MSG they purchased from Malaysia is covered merchandise under the scope of the *China MSG Order*; the scope of AD/CVD orders are publicly accessible.¹³² Moreover, if there is a question as to the scope of an order and what it covers, Importers themselves can request scope rulings from Commerce.¹³³ Furthermore, merchandise subject to AD/CVD duties requires the importers to have knowledge of the merchandise they are importing, especially of the production process and the source of materials used in making the MSG.

¹²⁸ The rate applicable to these entries are the China-wide entity rate for the *China MSG Order*, unless otherwise specified by Commerce.

¹²⁹ See CPF's Written Arguments and Jefe's Written Arguments. CBP notes that Commerce itself issued instructions noting that CBP should administer Commerce's liquidation instructions by suspending liquidation, of (i) shipments entered, or withdrawn from warehouse, for consumption on or after 05/15/2024, and (ii) shipments entered, or withdrawn from warehouse, for consumption prior to 05/15/2024 but no earlier than November 4, 2021. Therefore, there is no conflict between how either Agency is interpreting the entries covered by this EAPA investigation.

¹³⁰ See CPF's Written Arguments and Jefe's Written Arguments.

¹³¹ See 19 U.S.C. § 1517(a)(5).

¹³² See Section 484(a)(1) of the Tariff Act of 1930, as amended (19 U.S.C. § 1484(a)(1)), requires the importer of record "shall, using reasonable care...make entry...." See also 19 C.F.R. § 171 App. B(D)(6) ("All parties, including importers of record or their agents, are required to exercise reasonable care in fulfilling their responsibilities involving entry of merchandise."). Reasonable care could include seeking guidance from the Customs Service through the pre-importation or formal ruling program; consulting with a Customs broker, a Customs consultant, or a public accountant or an attorney; or using in-house employees such as counsel, a Customs administrator, or if valuation is an issue, a corporate controller, who have experience and knowledge of customs laws, regulations, and procedures.

¹³³ See 19 C.F.R. § 351.225.

IV. Actions Taken Pursuant to the Affirmative Determination as to Evasion

Considering CBP's determination that the Importers entered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the entries covered by this investigation, until instructed to liquidate. For those entries previously extended in accordance with the interim measures, CBP will rate adjust and change those entries to type 03 and continue suspension until instructed to liquidate these entries. CBP may also evaluate the Importers' continuous bonds in accordance with CBP's policies. None of the above actions preclude CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,



Paul Walker
Acting Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
Office of Trade